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By Bonnie Franks at 11:51 am, Feb 07, 2023

Town of Dover Planning Board

Town of Dover
126 East Duncan Hill Road
Dover Plains, NY 12522

(845) 832-6111 ext. 100

RESOLUTION GRANTING SPECIAL USE PERMIT, SITE PLAN AND EROSION AND SEDIMENT CONTROL PERMIT APPROVAL

TRANSCO SUBSTATION

WHEREAS, the applicant, New York Transco LLC, has submitted an application for site plan, special use permit and erosion and sediment control permit approval to construct an electric substation with transformers and appurtenant equipment (the "Project") on property located at 2238 NYS Route 22, identified as tax parcel no. 7061-00-698172 (the "Property") in the CO Zoning District; and

WHEREAS, public utility facility uses are permitted in the CO Zoning District subject to site plan and special use permit approval; and

WHEREAS, the Project is depicted on a site plan entitled, "Dover Station," prepared by Power Engineers, dated June 22, 2021, last revised August 31, 2022, Sheets DVB-E0-101, BS-1, DVB-E1-101, DVB-E1-102, DVB-C1-101, DVB-C1-102, DVB-C1-103, DVB-C1-104, DVB-C1-112, DVB-C1-113, DVB-C1-114, DVB-C1-115, DVB-C1-120, DVB-E2-110, DVB-E2-111 and DVB-E7-101 (the "Site Plan Set"); and

WHEREAS, by letter dated November 10, 2021, the Town Building Inspector determined that certain features of the Project that exceeded dimensional limitations in the Town Zoning Law were permitted because such features were required by applicable state and federal law including the 2014 NYS Uniform Fire Prevention and Building Code, including the requirement for a minimum of 9 ft fencing around the substations with one additional foot of barbed wire, and transmission poles and supports that exceed the Town's height limit of 35 feet; and

WHEREAS, the applicant has submitted a Full Environmental Assessment Form ("EAF") dated September 28, 2021, revised December 3, 2021, pursuant to the State Environmental Quality Review Act ("SEQRA"); and

WHEREAS, on October 18, 2021, the Planning Board classified the Project as a Major Project and as an Unlisted Action under SEQRA and circulated its intent to serve as Lead Agency in a coordinated review of the Project, to which no other agency objected; and

WHEREAS, involved and interested agencies in the SEQRA process included the Town of Dover Highway Department, Dutchess County Department of Public Works (DPW), NYS Department of Transportation (NYSDOT), NYS Department of Environmental Conservation (NYSDEC), NYS Office of Parks, Recreation and Historic Preservation (OPRHP), New York

State Public Service Commission (PSC), U.S. Army Corp of Engineers (USACE) and JH Ketcham Hose Company, Inc.; and

WHEREAS, the Project was referred to the Dutchess County Department of Planning and Development pursuant to Section 239-m of the General Municipal Law, which responded on November 3, 2021, that it was a matter of local concern (ZR21-320); and

WHEREAS, on October 30, 2021, members of the Planning Board conducted a site walk of the Property to review existing conditions of the Property and the adjoining areas; and

WHEREAS, the Project is located within 500 feet of NYS Route 22 and within the vicinity of an existing Con Edison Right of Way with existing utility towers; and

WHEREAS, the Project is located within or adjacent to the Great Swamp, a Critical Environmental Area ("CEA"), and the Planning Board has conducted its review with consideration of the potential impacts to the characteristics and qualities which warranted the area's designation as a CEA; and

WHEREAS, a duly noticed public hearing was opened on September 19, 2022 and continued through January 23, 2023, with written public comments accepted until February 1, 2023, during which time the public has had the opportunity to testify and provide written comments for the Planning Board's consideration; and

WHEREAS, there is an extensive record before the Planning Board, including reports prepared by the Applicant's consultants, the Board's consultants, and public testimony; and

WHEREAS, in reviewing the Project, the Planning Board considered all comments and submitted documents, including but not limited to the following:

1) All public comments made during the public hearings held on September 19, 2022, October 17, 2022, November 21, 2022 and January 23, 2023 and during the written comment period ending on February 1, 2023;
2) Applicant submissions, as set forth in Attachment A to this Resolution; and
3) Memorandums, letters and testimony provided by the Planning Board's consultants; and

WHEREAS, on February 6, 2023, the Planning Board adopted a Negative Declaration, determining that the Project as proposed would not result in any significant adverse environmental impacts.

NOW, THEREFORE, BE IT RESOLVED, that the Board makes the following findings pursuant to Section 145-63(B) of the Zoning Law:

1. **The Project will comply with all land use district, overlay district and other specific requirements of the Zoning Law and other applicable local laws and regulations and will be consistent with the purposes of the Zoning Law and the land use district in which it is located.** The Site is 16.3-acres and zoned in the

Town's Commercial/Industry/Office Mixed-Use (CO) Zoning District. The purpose of the CO District is to, among other things, "allow areas for light industrial . . . facilities." § 145-8(A)(7). The Project is a permitted use in the District and does not require any area variances.

2. **The Project will not result in excessive off-premises noise, dust, odors, solid waste, or glare or create any public or private nuisances.**

Sound
The Planning Board reviewed a sound assessment report prepared by Epsilon Associates. The report concludes that maximum sound levels from the Project will comply with the nighttime limit of 50dba at the property line set forth in the Town of Dover Code and meet applicable NYSDEC noise guidelines. The sound assessment was reviewed and evaluated multiple times by the Town's consultants, who also confirmed that, based on the studies completed to satisfy SEQRA, neither NYSDEC impact thresholds nor the Town property line noise level limits would be exceeded under operational conditions. Based on a review of the modeled octave band sound levels, the Project will also comply with the Town's guideline of avoiding disharmony with the character of the surrounding area under the modeled conditions.

The Board also considered sound during construction and finds that such sound is temporary and is anticipated to take approximately 12 months. Minor temporary increases in sound may occur during construction, which are typical of any project in the Town.

The Board is also requiring a post-construction sound test to confirm that the Project as constructed will operate within the Town's sound limits. In coordination with the Town Engineer, the Applicant has committed to conduct sound testing on the Site after completion of construction during the commissioning stage of the Project. Sound test measurement locations shall include the four (4) receptor locations at the Site property lines that are identified in the Epsilon report. The Town Engineer may require the Applicant to include in the Test no more than four (4) additional measurement locations at the Site property lines. If non-compliance with the Town Code is observed, the Applicant shall coordinate with the Town Engineer to evaluate potential corrective measures to ensure no significant noise impacts to the community.

Lighting/Glare
The Project will not utilize exterior lighting during nighttime hours under normal operations. Lighting at night will only occur for safety and security purposes, or required emergency maintenance visits. Security and emergency light fixtures and photometric analysis are identified on the Site Plan Set.

The Project will not cause illumination beyond the boundaries of the Site in excess of 0.5 footcandles. Illumination along all property lines of the Site will be 0.0

footcandles. Security and emergency lighting will be controlled from two 3-way switches; one located at the main entrance gate and one located in the control unit.

No glare is expected from the proposed equipment, but nonetheless, the facility will be substantially buffered from neighboring properties and public roads through robust landscaping, as shown on the landscaping plans.

Dust, Odors, or Solid Waste
The Project is an unoccupied public utility facility. It will not be staffed and will not produce odors or solid waste. Project operations will not produce any dust, and construction dust, if any, will be temporary and control measures will be implemented, such as stabilized points of entry to prevent dust and mud from being carried offsite as well as using water for dust control as appropriate.

3. **The Project will not cause significant traffic congestion, impair pedestrian safety, or overload existing roads, considering current width, surfacing, and condition, and any improvements proposed to be made to them by the applicant.** The Project is an unoccupied public utility facility that will not produce or result in additional traffic to the Site or the Town once constructed. The substation will be monitored remotely for security and maintenance purposes. It is expected that routine security and maintenance visits will occur 3 to 5 times per month. The Project is located on a NYS highway, Route 22, which will not be overloaded by the security and maintenance visits. The Project was referred to NYSDOT, which did not express any concerns about the Project, including the utility work permitting for activities affecting the state highway. The Applicant has also coordinated with the Dutchess County DPW regarding work to be conducted on the County highway.

   During construction temporary construction entrances will be located on NYS Route 22 and County Route 26 (Cricket Hill Road). Trucks entering either of these temporary entrances during construction will be required to originate from the northbound or southbound lanes of NYS Route 22. Trucks exiting either of these temporary entrances during construction will be prohibited from traveling east beyond the County Route 26 (Cricket Hill Road) construction entrance.

4. **The Project will be accessible to fire, police and other emergency vehicles.** The Project will have a single permanent access drive from NYS Route 22 into the Project Site, approximately 733 feet south of the County Route 26 (Cricket Hill Road) intersection and will be accessible by emergency vehicles. The J. H. Ketcham Hose Company has reviewed plans for the Project and offered comments, which the Applicant has addressed. The Project does not propose a Payment in Lieu of Tax ("PILOT") agreement and therefore the Project will contribute to community emergency services and will not overburden such services.

5. **The Project will not overload any public water, drainage or sewer system, or any other municipal facility.** The project is an unmanned substation and will not create

new demand for water or produce wastewater. Stormwater will be treated onsite. A Stormwater Pollution Prevention Plan ("SWPPP") has been prepared in accordance with GP 0-20-001, reviewed by the Planning Board Engineer, and will be filed with the NYSDEC.

6. **The Project will not materially degrade any watercourse or other natural resource or ecosystem or endanger the water quality of an aquifer.** The Project Site contains state and federal wetlands and is adjacent to the Great Swamp, a Critical Environmental Area. It is also located within the Aquifer Overlay District. No disturbance to state regulated wetlands, 100-foot wetland adjacent areas, or waterbodies is proposed. The Applicant consulted with USACE on the two small, isolated federal wetlands totaling 0.04 acres (with no inlet or outlet) that are proposed to be filled as part of the Project's construction. The Site and construction methodologies were reviewed by the NYSDEC, the Town Engineer, and Terracon – a national professional geotechnical, environmental and construction materials engineering and testing firm. The hydrogeological analysis determined that "[t]he planned area of disturbance on the Project Site is small relative to the scale of the overall system which feeds water into the Great Swamp. Accordingly, completion of the Dover Station project is not expected to have an adverse or measurable impact on aquifers or the quantity and quality of water which enters the system for the Great Swamp."

   NYSDEC confirmed that the Applicant is proposing appropriate measures as part of the Project "to avoid potential changes to the chemistry, quality, and quantity of surface and groundwater entering the adjacent wetland." (NYSDEC Determination, dated July 15, 2022). On March 3, 2022 the USACE issued a "No Permit Required" determination for the two small isolated federal wetlands proposed to be filled, and the Site is also not located within or near a 100-year or 500-year floodplain.

   In connection with the Project, the Planning Board is requiring the Applicant to remove certain existing surface debris in specific, designated locations outside of the planned area of disturbance for the Project on the Site. The Applicant worked with the NYSDEC and obtained a determination from the NYSDEC to perform certain work in a manner that will not cause any adverse environmental impacts. To the extent that such debris is the source of pollutants entering the Great Swamp, the removal of the debris could improve water quality.

   Natural Resources/Ecosystem
   The Site was identified as potentially containing habitat for several State and Federally-listed threatened, endangered, or special concern species, including Indiana bat, bog turtle, timber rattlesnake, fairywand, and New England cottontail. To avoid potential impacts to Indiana bat (which have not been observed on-site), the Applicant will limit tree clearing on the Site to the period between October 1st through March 31st. While potential bog turtle habitat was not observed on the Site, the Applicant has coordinated with NYSDEC to provide appropriate measures to protect bog turtles including turtle exclusion fencing, and an Education and Encounter

Plan. The closest timber rattlesnake den in the vicinity of the Site is located west of NYS Route 22 and this road provides a significant enough barrier that it would make it unlikely for timber rattlesnakes to be using the Site. However, the Applicant has prepared an Education and Encounter Plan for timber rattlesnake if needed during construction, in addition to that prepared for bog turtle. Based on surveys conducted by the Applicant and coordination with NYSDEC, it was determined that the Site does not contain fairywand or habitat for the New England cottontail.

Following several rounds of coordination and review with the Planning Board's consultants and NYSDEC, NYSDEC confirmed via email on July 15, 2022 that with inclusion of measures proposed by the Applicant as part of the Project (and memorialized in the Site Plan set), the Project will "avoid and/or minimize any direct impacts to individual bog turtles and avoid potential changes to the chemistry, quality, and quantity of surface and groundwater entering the adjacent wetland, and further that the Project does not require a Part 182 Incidental Take Permit for any state-listed species."

Although there is no federal nexus (i.e., funding, permitting) associated with the Project, the Applicant coordinated with the U.S. Fish and Wildlife Service (USFWS). In a letter dated December 27, 2022 USFWS indicated that based on the measures noted above, no take of Indiana bat or bog turtle would occur with the Project, and no further coordination with USFWS is required for the Project.

The Planning Board acknowledges receipt of an email from USFWS on February 6, 2023, after the close of the Public Hearing, questioning potential contamination from tires and debris on the Site. The Planning Board finds that the Site-specific information provided by the Applicant and reviewed by the Board and its Consultants, including soil testing, stormwater management features, and the debris removal plan approved by NYSDEC, adequately address the general concern raised in the email from USFWS.

Water Quality of an Aquifer
The Project does not conflict with the Aquifer Overlay District provisions or its intent and that the Project does not present a risk to the quality of town water supplies or groundwater resources.

The Site is not located near a public water system wellhead. The Project does not draw water supply and does not produce wastewater. Agricultural use is not proposed. No aboveground or underground petroleum storage tanks are proposed. The Project does not involve the use of a public water supply system, or the installation of a new on-site wastewater treatment system (septic system). The Project includes secondary containment features below and around the transformers proposed on the Site.

The Applicant has prepared a SWPPP and Erosion and Sediment Control (ESC) Plan to the satisfaction of the Town Engineer. The SWPPP shows that the Project will

result in a reduction in peak stormwater runoff rate for each drainage area for all design storms. Erosion and sediment control measures will be implemented in accordance with GP-0-20-001 and Chapter 65 of the Town Code.

Environmental professionals completed surface and subsurface investigations (e.g., soil and groundwater testing) in compliance with state and federal guidance and standards.

Blasting of bedrock on a limited extent of the Site will occur within 1,500 feet of a residence and a Critical Environmental Area (The Great Swamp). Blasting will be temporary and is expected to occur at a point within the site preparation phase of the Project's construction, a phase that in total will last approximately four months. All blasting will be in accordance with Town Building Code requirements (Town Code Chapter 69) and will require a permit from the Town.

So as to not awaken bog turtles from their hibernating slumber, no blasting shall occur between September 30th and April 1st annually.

7. **The Project will be suitable for the Property on which it is proposed, considering the property's size, location, topography, vegetation, soils, natural habitat, and hydrology, and, if appropriate, its ability to be buffered or screened from neighboring properties and public roads.** The Project Site is 16.3 acres in the CO District in which utility facilities are a permitted use, and is located on, and accessed by, NYS Route 22, a state highway. The Project proposes substantial landscaped buffers along public roads and neighboring properties, including over 250 new plantings and mature (20-ft tall) evergreens along NYS Route 22 and County Route 26 (Cricket Hill Road). As described within the Visual Impact Assessment (VIA) Report, the Project has minimal visibility and will not cause an adverse visual impact or conflict with NYSDEC Visual Policy. The Project leaves the northeastern corner of the Site largely undisturbed and proposes a landscaped buffer along the County Route 26 (Cricket Hill Road) frontage, including the preservation of existing vegetation. This vegetation buffer will be bolstered by the proposed new plantings along the northern and western portions of the Site.

8. **The Project will be subject to such conditions on operation, design and layout of structures, and provision of buffer areas as may be necessary to ensure compatibility with surrounding uses and to protect the natural, historic and scenic resources of the Town.** As set forth in paragraph 7, above, the Project includes significant plantings along Route 22 and County Route 26 (Cricket Hill Road) to buffer the Project from public view. According to the VIA, "only 1.58% of the three-mile Study Area will theoretically contain a view of the proposed Project" and 22% of that is from the Con Edison ROW. Further, the VIA concludes that "In the limited locations in the Study Area where the Dover Station Project may be visible, it would be observed in conjunction with existing utility infrastructure and does not alter the character of the community."

9. **The Project will be consistent with the goal of concentrating retail uses in hamlets, avoiding strip commercial development and buffering nonresidential uses that are incompatible with residential use.** The Board does not find that the unoccupied substation is incompatible with residential use, nonetheless, the Applicant has provided significant landscaping to buffer the nonresidential use.

10. **The Project will not adversely affect the availability of affordable housing within the Town.**

11. **The Project will comply with all applicable site plan criteria.**

12. **The Project is not within a residential district.**

BE IT FURTHER RESOLVED, that the Planning Board hereby grants the Site Plan approval to the Project, in accordance with the Site Plan Set, and grants Special Use Permit approval for a public utility facility to the Applicant, and authorizes the Chair or his authorized designee to sign the Site Plan Set after compliance with the following conditions:

1. **Payment of all fees and escrow.**
2. **Approval by the Attorney to the Planning Board and Town Attorney of the Decommissioning Agreement, and evidence of recordation of same with the Dutchess County Clerk.**
3. **Approval by the Town Engineer, Planner and Planning Board Attorney of post-construction noise testing protocols.**
4. **Revision of the Site Plan Set to include a new plan sheet depicting the map of the debris removal within state regulated wetland areas and debris removal protocols approved by the NYSDEC, as per Exhibit B of the 4/28/22 Applicant Submission, with a note that all debris will be removed prior to the issuance of a Certificate of Completion for the Project, to the approval of the Town Engineer.**
5. **Revision of the Title Sheet and Sheet DVB-C1-104 of the Site Plan Set to include the following note: All construction traffic shall enter and exit Route 26 (Cricket Hill Road) from NYS Route 22.**
6. **Revision of Sheet DVB-C1-104 to require the installation of a sign prohibiting truck traffic from traveling east beyond the County Route 26 (Cricket Hill Road) construction entrance. Specifications for such sign shall be approved by the Town Engineer.**
7. **Submission of an affidavit by the Applicant that a Payment in Lieu of Tax Agreement will not be sought within 10 years or, if so, that Applicant will resubmit to the Town of Dover Planning Board for a modified SEQRA evaluation.**

BE IT FURTHER RESOLVED, that the Planning Board hereby grants the applicant an erosion and sediment control permit for disturbance as shown on the Site Plan Set subject to the following conditions:

1. **Submission of $7,500.00 to be placed into escrow to cover the cost of site inspections by the Planning Board Engineer.**
2. **Submission of a performance guaranty in the amount of $75,000.00, in form, substance, and matter of execution satisfactory to the Town Attorney.**

BE IT FURTHER RESOLVED, that before the authorized official may issue a Certificate of Compliance, the Planning Board Engineer shall provide the authorized official with a written statement indicating that all work authorized under the permit has been completed in accordance with the approved permit and that all debris removal as shown on the approved debris removal plan sheet outside of the planned area of disturbance has occurred.

Motion by Chairman Courtien **Seconded by: Member Villano**

Date: February 6, 2023

Ryan Courtien, Chair	AYE
Valerie LaRobardier	AYE
Tom Holmes	AYE
Tamar Roman	NAY
William Sedor	AYE
Michael Villano	AYE
Henry Williams	ABSENT

Ryan Courtien, Planning Board Chair

Attachment A to Resolution Granting Special Use Permit, Site Plan and Erosion and Sediment Control Permit Approval

New York Transco LLC

Applicant's Submissions

October 1, 2021 Planning Board Submission

- Submission items include:
  - Cuddy & Feder LLP Cover Letter, dated October 1, 2021;
  - Attachment A: Planning Board Application Forms, Checklists, and Letter of Agent;
  - Attachment B: SEQR Full EAF Part 1;
  - Attachment C: Addendum to Full EAF Part 1;
    - C(1): Project Description;
    - C(2): EAF Figures;
    - C(3): Agency Correspondence;
  - Attachment D: Transportation and Construction Narrative;
  - Attachment E: Sound Level Impact Assessment Report, dated September,2021;
  - Attachment F: Visual Impact Assessment Report, dated September,2021;
  - Attachment G: Wetland and Stream Delineation Report, dated September 21, 2021;
  - Attachment H: Preliminary Blasting Plan, dated September,2021;
  - Attachment I: Site Plan Set (Full-sized folded plans), dated September 14, 2021;
  - SWPPP; and
  - USB Flash Drive

October 18, 2021 New York Transco Power Point Presentation

October 25, 2021 Cuddy & Feder LLP letter to Paul Johnston, CEO[1]

November 1, 2021 Cuddy & Feder LLP letter enclosing Site Visit Reference Map

December 3, 2021 Planning Board Submission

- Submission items include:
  - Cuddy & Feder LLP Cover Letter dated December 3, 2021
  - TRC Response Letter dated December 3, 2021
  - Attachment A: OPRHP (SHPO) Response Letters;
  - Attachment B: Updated Full EAF
  - Attachment C: NYSDEC Validated Wetland Delineation Map
  - Attachment D: Updated Landscaping Plan (Sheet DVB-C1-120)
  - Attachment E: Education and Encounter Plan Pamphlets
  - Attachment F: Updated Sound Level Impact Assessment Report, revised December 1, 2021
  - Attachment G: Construction Sequence & Duration Graph and Construction Sound Table
  - Attachment H: Supplemental Visual Appendix (Memorandum and Simulations) dated December 2, 2021

[1] Follow up to June 29, 2021 Cuddy & Feder LLP correspondence

- Appendices to this Letter: Appendix (1) USACE Correspondence; Appendix (2) NYSDEC Correspondence; Appendix (3) USFWS Correspondence ; Appendix (4) OPRHP Correspondence; Appendix (5) CEO Decision
- USB Flash Drive

January 26, 2022 New York Transco PowerPoint Presentation to Town Board

April 29, 2022 Planning Board Submission

- Submission items included: Cuddy & Feder LLP Cover Letter, dated April 29, 2022;
- TRC Correspondence dated April 28, 2022, providing written responses;
- Attachment A: US Army Corp. of Engineers Approved Jurisdictional Determination (AJD), issued February 2, 2022, and No-Permit Required (NPR) Letter, issued March 3, 2022;
- Attachment B: DEC Determination for Voluntary Debris Removal, dated March 2, 2022;
- Attachment C: Epsilon Associates Addendum to Sound Level Impact Assessment Report, dated April 28, 2022;
- Attachment D: TRC Supplemental Visual Memorandum, dated April 28, 2022;
- Attachment E: Terracon Hydrogeology Memorandum with attachments, dated April 7, 2022;
- Attachment F: TRC Response to letter from Planning Board Member Roman, dated April 28, 2022;
- Attachment G: Updated Site Plan Set, dated April 26, 2022; and
- USB Flash Drive

July 29, 2022 Planning Board Submission

- Submission items included:
  - Cuddy & Feder LLP cover letter, dated July 29, 2022;
  - TRC correspondence dated July 28, 2022;
  - Attachment A: Correspondence with the Dover Fire Department, dated July 18, 2022;
  - Attachment B: Correspondence from TRC, dated July 28, 2022;
  - Attachment C: Terracon Hydrogeology Memo with Attachments;
  - Attachment D: NYSDEC Determination, dated July 15, 2022;
  - Attachment E: Epsilon Sound Level Impact Assessment Report, updated July 2022 to include the April 2022 Sound Addendum;
  - Attachment F: Supplemental Construction Sequence & Duration Graph;
  - Attachment G : SHPO/OPRHP Decision, dated May 31, 2022;
  - Attachment H: TRC Town of Dover Demographic Profile Report, July 2022;
  - Supplemental Appendices: SHPO Correspondence; NYSDEC Correspondence; and
  - USB Flash Drive

August 10, 2022 New York Transco Letter with Sound Test Protocols

September 1, 2022 Planning Board Submission

- Submission items included:
  - Cuddy & Feder LLP Cover Letter, dated September 1, 2022
  - TRC Correspondence, dated September 1, 2022;
  - Updated Education and Encounter Plan & Pamphlet for the timber rattlesnake during Site operations and maintenance;
  - Site Plan Sets, updated August 31, 2922
  - USB Flash Drive

September 13, 2022 New York Transco Letter with Decommissioning Terms/Plan

September 19, 2022 email New York Transco Power Point Presentation

September 19, 2022 Cuddy & Feder LLP

- Items delivered at Public Hearing:
  - Original Affidavit of Mailing DCPD for September 19, 2022 Public hearing; and
  - Affidavit of Posting for September 19, 2022 Public Hearing

September 30, 2022 Planning Board Submission

- Submission items included
  - Cuddy & Feder LLP Cover Letter, dated September 30, 2022;
  - New York Transco Cover Letter providing responses and following attachments; o Attachment A: Dover Station Property Tax Analysis, dated September 29, 2022; o Attachment B: Property Valuation Assessment Report, dated September 29, 2022;
  - Attachment C: Underground Transmission Response, dated September 29, 2022; and
  - USB Flash Drive

October 17, 2022 Cuddy & Feder LLP

- Items delivered at Public Hearing:
  - Affidavit of Mailing DCPD for October 17, 2022 Public Hearing; and
  - Affidavit of Posting for October 17, 2022 Public Hearing

November 4, 2022 Planning Board Submission

- Submission items included:
  - Cuddy & Feder LLP Cover Letter, dated November 4, 2022;
  - New York Transco Memo, dated November 3, 2022;
  - Attachment A: NYT Dover Station – Comment Response Summary Table;
  - Attachment B: NYT Property Tax Analysis Supplemental Report, dated November 3, 2023;
  - Attachment C: Property Valuation Response Letter and Updated Assessment Report, dated October 29, 2023;
  - Attachment D: TRC Subsurface Conditions Supplemental Response , dated November 4, 2023 ;
  - Attachment E: NYT Underground Transmission Line Supplement Response, dated November 4, 2023;

- Attachment F: TRC Environmental Justice Supplemental Report ;
- Attachment G: NYT Public Participation and Outreach Summary, dated November 3, 2022 with Attachments 1-3; and
- USB Flash Drive

November 21, 2022 Cuddy & Feder

- Items include:
  - Cuddy & Feder LLP cover letter, dated November 21, 2022;
  - New York Transco Power Point Presentation, dated November 21, 2022
  - Affidavit of Posting for November 21, 2022 for Continued Public Hearing; and
  - Copy of Decommissioning Plan/Terms and Sound Test Protocols.

November 21, 2022 email with New York Transco Power Point Presentation January 4,

2023 Planning Board Submission

- Submission items included:
  - Cuddy & Feder LLP Cover Letter, dated January 8, 2023;
  - Attachment A: Summary Response to Underground Transmission Line Comment;
  - Attachment B: USFWS Determination, dated December 27, 2022; and
  - Attachment C: Transco Letter and Sound Test Protocols, dated August 10, 2022.
  - USB Flash Drive

January 17, 2023 Victor Mullin, President of New York Transco correspondence to Chairman Courtien

January 18, 2023 Planning Board Submission

- Submission Items include:
  - Cuddy & Feder LLP cover letter, dated January 18, 2023;
  - Special Permit Criteria Compliance Narrative; and
  - USB Flash Drive

January 23, 2023 Cuddy & Feder LLP letter to Town

- Enclosures include:
  - Cuddy & Feder Cover Letter, dated January 23, 2022
  - Affidavit of Posting for continued Public Hearing January 23, 2023;
  - Meeting Transcripts from the October 18, 2021; May 23, 2022; August 15, 2022; September 19, 2022; October 17, 2022 and November 21, 2022.
  - Response from ACOE, dated March 3, 2022; USFWS, dated December 21, 2022 and NYSDEC, dated December 29, 2022 regarding upgrades within the Con Edison right-of-way to Line #398; and
  - List of Applicant's Submissions for the Project.

February 1, 2023 Cuddy and Feder LLP to Town

- Enclosures include:
  - Cuddy & Feder Cover Letter, dated February 1, 2023
  - Letter from Public Service Commission dated January 20, 2023
  - Letter from TRC dated January 23, 2023
  - SEQR Summary Narrative prepared by TRC dated January 23, 2023

- Letter from TRC dated February 1, 2023 with attached letters from US Department of the Interior dated January 24, 2023 and Terracon dated February 1, 2023